ZIMBABWE SCHOOL EXAMINATIONS COUNCIL AMENDMENT BILL, 2025

MEMORANDUM

This Bill will make amendments to the Zimbabwe School Examinations Council Act [*Chapter 25:18*]. In more detail, the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the Bill's short title.

Clause 2

This clause introduces new definitions and amendments to existing definitions in the principal Act in particular, by deleting the definition of "Director" and substituting it with "Chief Executive Officer" and also to amend the definition of "board".

Clause 3

This clause provides for an extension on the functions of the Council to deregister examination centres that do not comply with ZIMSEC's standards of operation.

Clause 4

This clause amends the composition of the ZIMSEC Board to strengthen its efficiency by appointing necessary and relevant skilled persons from audit, human resources, finance, Information and technology or risk management that can efficiently execute ZIMSEC's mandate.

Clause 5

This clause amends the number of mandatory meetings of the ZIMSEC Board from three meetings per year to four meetings.

Clause 6

This clause amends the provision on the Finance Committee of the Board to make it clear that the Board appoints the members of that committee.

Clause 7

This clause amends ZIMSEC's financial year end from 30th June to 31st December of each year.

Clause 8

This clause provides for additional offences under the ZIMSEC Act and to further list acts of examination malpractice and the penalties they attract.

Clause 9

The clause inserts a new section to provide for the imposition of penalty on institutions for examination malpractice.

BILL

To amend the Zimbabwe School Examinations Council Act [*Chapter 25:18*] and to provide for matters connected with or incidental thereto.

ENACTED by the Parliament and the President of Zimbabwe.

PART I
PRELIMINARY

1 Short title

This Act may be cited as the Zimbabwe School Examinations Council Amendment Bill, 2025.

2 Amendment of section 2 of Cap. 25:18

Section 2 ("Interpretation") of the Zimbabwe School Examinations Council Act [*Chapter 25:18*] (hereinafter called "the principal Act" is amended by the repeal of the definition of "Director" and the substitution of—

""Chief Executive Officer" means the chief executive officer of the council appointed in terms of section 19".

3 Amendment of section 4 of Cap. 25:18

Section 4 ("Functions of Council") of the principal Act is amended in section 4(1) by the repeal of paragraph (d) and substitution of—

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"(d) to register, monitor and de-register examination centres subject to the regulations made in terms of section 36;".

4 Amendment of section 6 of Cap. 25:18

Section 6 ("Composition of Board") of the principal Act is amended in section 6—

(a) by the repeal of (1) and substitution of—

"(1) Subject to this section and section seven, the Board shall consist of—

(a) not more than three representatives from State universities appointed by the Minister from names submitted to him or her by State universities;

(b) not more than three representatives from private universities appointed by the Minister from names submitted to him or her by private universities;

(c) one person appointed by the Minister from a list of not fewer than two names submitted to the Minister by the Zimbabwe National Chamber of Commerce represented by its governing body;

(d) a registered legal practitioner appointed by the Minister after consultation with the Law Society of Zimbabwe;

(e) one person appointed by the Minister from a list of not fewer than two names submitted to the Minister by the Confederation of Zimbabwe Industries represented by its governing body;

(e) Chief Executive Officer; and

(f) five persons each of them appointed by the Minister for his or her knowledge, skill, qualifications or experience in the following areas—

(i) Audit;

(ii) Human resources;

(iii) Finance;

(iv) Information Technology; and

(v) Risk management;

(b) by the repeal of subsection (4).

5 Amendment of section 11 of Cap. 25:18

Section 11 ("Meetings and procedure of Board") of the principal Act is amended in subsection (1) by the repeal of the proviso and substitution of—

"Provided that the Board shall meet at least four times a year.".

6 Amendment of section 13 of Cap. 25:18

Section 13("Finance Committee") of the principal Act is amended in section 13 by the repeal of (1) and substitution of—

"(1) There shall be a committee of the Board, to be known as the Finance Committee, which shall consist of such other members as the Board may appoint.".

7 Amendment of section 26 of Cap 25:18

Section 26 ("Financial year of Council") of the principal Act is amended by the repeal of section 26 and substitution of—

"The financial year of the Council shall be the period of twelve months ending on the 31st of December each year.".

8 Amendment of section 12 of Cap 12:06

Section 35 ("Offences and penalties") of the principal Act is amended in section 35 by—

(a) the insertion of paragraphs (g), (h), (i), and (j)—

"(g) makes representation that he or she is in possession or that someone is in possession of an examination material; or

(h) altering a candidates original answer script; or

(i) without lawful authority, alters the records of the Council with regard to an examination or examination results in relation to a candidate;

shall be guilty of an offence and liable to a fine not exceeding level 7 or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment."

(b) the insertion of subsection (2)—

"(2) Any person who forges, alters, offers, utters or disposes of any document, purporting to show that a person has obtained a result in an examination held by the Council, knowing the same to be the forged or altered shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment.".

9 Amendment of section 37 of Cap. 25:18

The principal Act is amended by the insertion of a new section 37—

"37 Imposition of penalty on institutions for examinations irregularity

(1) Where more than half of the candidates at an institution which is registered to offer examinations are found to have acted contrary to the provisions of this Act, either before, during or after the examination, the Council shall prohibit such institution from organising, supervising or acting as an examination centre of the Council, in the conduct of an examination for a period determined by the Council.

(2) The Council shall organise and supervise the examinations for the affected students, at the expense of the suspended institution.

(3) Where the Council provides an alternative examination centre for the affected students, the expenses will be borne by the suspended institution".